

25STCV22757 25STCV22757

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-27

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Case Number: 25STCV22757 Hearing Date: August 27, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:55 PM on August 26, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 26, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that Defendant

could not repair the vehicle to conform to warranties.

The parties settled the case. Plaintiff

moves for an award of attorney's fees, costs and expenses.

TENTATIVE RULING

Plaintiff Ronnie J. Adams motion

for attorney's fees is GRANTED in the reduced amount of \$12,000 and the motion for costs and expenses is GRANTED in the requested amount of \$1,077.63, for a total amount of \$13,077.63.

ANALYSIS

Motion For

Attorney Fees, Costs and Expenses

Discussion

The Court

has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

The parties settled the case.

Plaintiff moves for an award of attorney fees, costs, and expenses, in the total amount of: \$22,968.88, including: (1) \$12,577.50 (24.8 hours) in incurred attorney's fees; (2) an additional \$2,500.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief, attend the hearing on this Motion, draft an opposition to Defendant's anticipated motion to tax costs, and attend the hearing thereto with (3) \$1,077.63 in costs and expenses; (4) \$525.00 in anticipated costs and expenses for a Court reporter for the hearing on the instant Motion (5) and a 0.5 multiplier enhancement on attorney fees for \$6,288.75.

Plaintiff

brought causes of action pursuant to the Song-Beverly Act, Civil Code § 1790, et seq. Civil Code, § 1794(d) provides:

(d) If the

buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer

in connection with the commencement and prosecution of such action.

Plaintiff obtained a settlement for full statutory restitution for a 2022 Chevrolet Silverado 1500 \$58,707.76, plus an agreement to pay attorney's fees, costs, and expenses by motion in addition to significant civil penalties.

The

determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal. App. 4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the Complaint was filed on August 1, 2025. Defendant answered the Complaint on September 19, 2025. A Notice of Settlement was filed on June 23, 2026.

In general, Lemon Law litigation presents certain routine issues which are applicable to other consumers' vehicles, which would trigger economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of Lemon Law case. The Complaint included six causes of action, none of which were fraud-based.

Defendant

argues that this case moved forward with minimal activity—never progressing beyond the exchange of initial disclosures and taking Plaintiff's deposition—for Plaintiff's counsel filing a complaint, producing four categories of documents totaling 18 pages, attending mediation, and defending a deposition. Counsel's demand is unreasonable and excessive for a straightforward breach of warranty case that did not raise any complex or novel issues, required no special skill, and resolved quickly without any written discovery exchange, expert involvement, vehicle inspections, dispositive motions, or trial preparations. The Court gives weight to Defendant's argument.

The Court has examined the billing summary attached as Exhibit B of the Declaration of Peter Maissian. The Court approves the hourly rate of \$425, \$525, \$625. (Massian Decl., ¶¶ 23 – 42.) However, the Court reads into these hourly rate experience in consumer and lemon law litigation which would account for efficiency and knowledge that would be expected of counsel billing at these rates, which in turn should minimize the amount of legal research and drafting of discovery requests and responses required for this Lemon Law case.

"A

trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case." (Karton v. Ari Design & Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

Plaintiff did not file a memorandum of costs, so there will be no motion to tax costs to oppose. The Court reads into the hourly rates charged by counsel the factors of risk and delay in payment. As such, the Court does not find any justification for the application of a multiplier and declines to apply such.

[E]ven though the trial court did not specifically mention other factors open to consideration when a multiplier is under consideration, [an

appellate] court must presume that the trial court considered all factors in reaching its decision, “even though the court may not have mentioned or discussed them in its written ruling.” (Citation omitted.)

(Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 255.)

The Court finds that the reasonable amount of attorney’s fees incurred is \$12,000, which includes the time spent on bringing this fee motion.

As for costs and expenses, the Court approves costs in the amount of \$1,077.63, as set forth in the billing invoice attached as Exhibit B to the Maissian Declaration. Costs and expenses recoverable by a prevailing buyer in a Song-Beverly action includes items not included in the statutory definition of costs set forth in Code Civ. Proc. § 1033.5, but includes those reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794(d); Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-38; overruled in part on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal. 5th 189, 205.)

As such, Plaintiff’s motion for attorney’s fees is GRANTED in the reduced amount of \$12,000 and the motion for costs and expenses is GRANTED in the requested amount of \$1,077.63.